

Form No:HCJD/C-121 -1-
ORDER SHEET

**IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Case No: Criminal Misc.No.3723-B-2013

Muhammad Ijaz, etc.

Versus

The State, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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26-04-2013 Mr. Munir Ahmad Bhatti, Advocate for petitioners.
Mr. Muhammad Nawaz Shahid, DDPP for State.
Niaz Ahmad, S.I. with record.

Muhammad Ejaz & Liaqat Ali, the accused-petitioners seek post arrest bail in cross version of FIR No.225-2012 dated 16.11.2012, registered under Sections 302, 148/149 PPC, at P.S. Aroti, Tehsil Kamalia, District T.T. Singh.

2. The allegation against the petitioners is that on 16.11.2012 at about 5-30 a.m. they while armed with dagger and hatchet along with their co-accused armed with firearms formed unlawful assembly in the area of Chak No.747/G.B. and co-accused Ghulam Muhammad made a fire shot with .12 bore double barrel gun hitting Mst. Jannat Bibi at right side of her back, thereafter two fire shots were made by co-accused-Khadam Hussain with repeater .12 bore at Mst. Jannat Bibi out of which one fire shot landed on the neck and second on the left side of back of Mst. Wallan Bibi, who succumbed to the injuries at the spot. The occurrence was witnessed by Ejaz Hussain and his companions. The co-accused Ghulam Muhammad and Khadim Hussain have

committed the said occurrence on the abetment of co-accused Barkat Ali.

3. The learned counsel for the petitioners has contended that case against the petitioners is false and concocted one; the petitioners have been falsely roped in this case by the complainant with the connivance of the police; that no overt-act has been attributed to the petitioners; that according to the substituted prosecution story narrated by complainant, mere the presence of the petitioners was shown and nothing has been recovered on their pointation; that it is also stated that during the investigation, mere the presence of both the petitioners have been found; that due to the illegal act of the police the former complainant namely Ghulam Muhammad has also filed a private complaint which is pending adjudication before learned trial court; that the present complainant has shown himself as husband of Mst. Wallan Bibi but said Mst. Wallan Bibi has filed a suit for jactitation of marriage against Ejaz Hussain-complainant prior to her murder; that the private complaint has been filed regarding the forged Nikkah-nama of Ejaz Hussain, present complainant with Mst. Wallan Bibi in which the accused persons i.e. Ejaz Hussain-complainant, etc have already been summoned by the learned trial court. In such circumstances, the case of the petitioners calls for as one of further inquiry; that the petitioners are behind the bars since 26.12.2012 and as such their further detention would not serve any useful purpose. Therefore, the petitioners are entitled to the concession of bail.

4. The petition has vehemently been opposed by the DDPP and it is expressed that the petitioners have participated in the occurrence, who are involved in brutal murder of two ladies and heinous offence has been committed by the accused-persons, the recoveries of offence have been effected from the present petitioners, that the accused were involved in double murder, therefore, they are not entitled to the concession of bail. However, learned DDPP after going through the record has also informed that during the course of investigation, the presence of the petitioners is found, but no overt-act has been attributed to them.

5. Arguments heard and record perused.

6. It is a case of two versions. Admittedly, the case was initially registered on the complaint of Ghulam Muhammad (co-accused in cross-version) and second version was recorded on the application of one Ejaz Hussain (accused of FIR). The fatal injuries were attributed to Ghulam Muhammad and Khadim Hussain co-accused for causing injuries to Mst. Jannat Bibi and Mst. Wallan Bibi, but no overt-act has been attributed to the present petitioners except they were found present at the time of incident. Muhammad Ejaz (petitioner No.1) was armed with dagger; whereas, Liaqat Ali (petitioner No.2) was armed with hatchet at the time of incident, but no fatal injury was caused by them to both the deceased ladies. According to the post mortem report, the deceased were murdered with fire-shots. During the course of investigation, mere presence of both the petitioners was found, but no overt-act has been attributed to them. It is a case of two versions from the same incident; one was given by the

complainant of FIR and second was given by the complainant of cross version. The complainant of first version, was made as accused through counter version. In such circumstances, normally the bail is granted on the ground of further inquiry. Relies upon "Shaoib Mehmood Butt. Vs. Iftikhar-ul-Haq, etc." (1996 S.C.M.R. 1845), according to which the Court while deciding bail applications, could resort to tentative sifting of evidence as distinguished from elaborate sifting of evidence and the contention that bail could not be granted, if plea pressed turned on appreciation of evidence was not correct. The vicarious liability will be seen by the learned trial Court after recording of evidence and appraisal thereof. In such circumstances, the petitioners are entitled to the concession of bail.

For the foregoing reasons, the instant petition is accepted and the petitioners are admitted to bail subject to furnishing their bail bonds in the sum of Rs.2,00,000/- each with one surety each in the like amount to the satisfaction of learned trial Court.

(Aalia Neelum)
Judge

Approved for Reporting.

Judge

*R.Yousf